IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-536
CP CAA No- 62/230/232/ND/2020

IN THE MATTER OF:
ECE Industries Ltd and Kumar Metals Pvt Ltd ....**Applicant**

SECTION
U/s 230-232

Order delivered on 09.03.2021

CORAM:
SHRI ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (JUDICIAL)

SHRI K.K. VOHRA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : , Adv. Shankari Mishra for RD and OL, Mr. Sunil Agarwal Sr. Standing Council, Mr. Tushar Gupta Jr. Standing Council, Mr. Sumit Kr. Mishra Advocate, Kartikeya Goel, Adv

For the Respondent :

ORDER

Gist of objections raised by RD (Page 5, 6 and 9 of RD report dated 17.12.20) were brought to knowledge of Counsel for RD including observation for cancellation of public equity shares and issuance of 9% preference shares. RD report also mentioned that enquiry was in progress u/s 206 of Companies Act. In course of hearing, Ld. Counsel for petitioner appeared and submitted that he has filed affidavit on 22.12.20 and second affidavit on 26.12.20 to answer the objections raised by RD; he mentioned, among other things, that MCA circular of 24.12.20 makes RD objection based on office memorandum dated 14.08.20 infructuous; he also stated that new format of Form SH-7 prescribed by MCA answers the objections raised by RD. As Counsel for RD did not have copies of these 2 affidavits (dt 22.12.20 and 26.12.20), Counsel for Petitioner was advised to furnish the same to Counsel for RD. Ld. Counsel for the RD and OL (same Counsel for both) has sought one week adjournment to give clarifications in view of RD's earlier observations.

Ld. Counsel for OL has submitted that the department has no objection as well as department has submitted the no objection certificate.

Ld. Counsel for the Income Tax Department has submitted that the department has no objection.

List the matter on 23.03.2021.

Sd/-

(K.K. VOHRA)
MEMBER (T)

Sd/-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)